सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
जन संपर्क अनुभाग, हवाई माल संकुल सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
TECHNICAL, AIR CARGO COMPLEX, SAHAR, ANDHERI (EAST), MUMBAI – 400 099

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F. No. S/3-Misc-PRO-05/2020-21/ACC(I) Part File **Date: 19.04.2023**

STANDING ORDER No.17/2023

Subject: Procedure for granting manual Out of Charge of import consignments where duty is not being reflected in ICES after payment.– reg.

With the notification of the Customs (Electronic Cash Ledger) Regulations, 2022 (ECLR) vide Notification No. 20/2022–Customs (N.T.) dated 30.03.2022, the statutory provisions of Section 51A of the Customs Act, 1962 came into force with effect from 01.06.2022. However, all the deposits classes were exempted till 31.03.2023, vide Notification No. 47/2022 – Customs (NT) dated 31.05.2022, as amended. Further, vide Circular No. 09/2023–Cus. dated 30.03.2023, Board has enabled ECL in phases from 01.04.2023. However, on implementing the said provisions, in some instances, grievances from trade have been received that after payment of the duty the same is not being reflected in ICES and thus the Out of Charge (OOC) to such consignments could not be processed in the ICES.

2. Till the process of integration of ECL with ICES, ICEGATE and Banks becomes smooth and in order to maintain uninterrupted flow of supply chain, manual Out of Charge has been allowed vide Trade Facility Notice No. 01/2023 dated 06.04.2023 and Trade Facility Notice No. 02/2023 dated 13.04.2023 confirming the payment of duty, along with an undertaking that in case duty is not credited to the government account the Importer shall deposit the same.

3. To streamline the process of grant of Manual Out of Charge in a timely manner and monitoring of the Bills of Entry where manual Out of Charged given, the following process shall be followed at Air Cargo Complex.

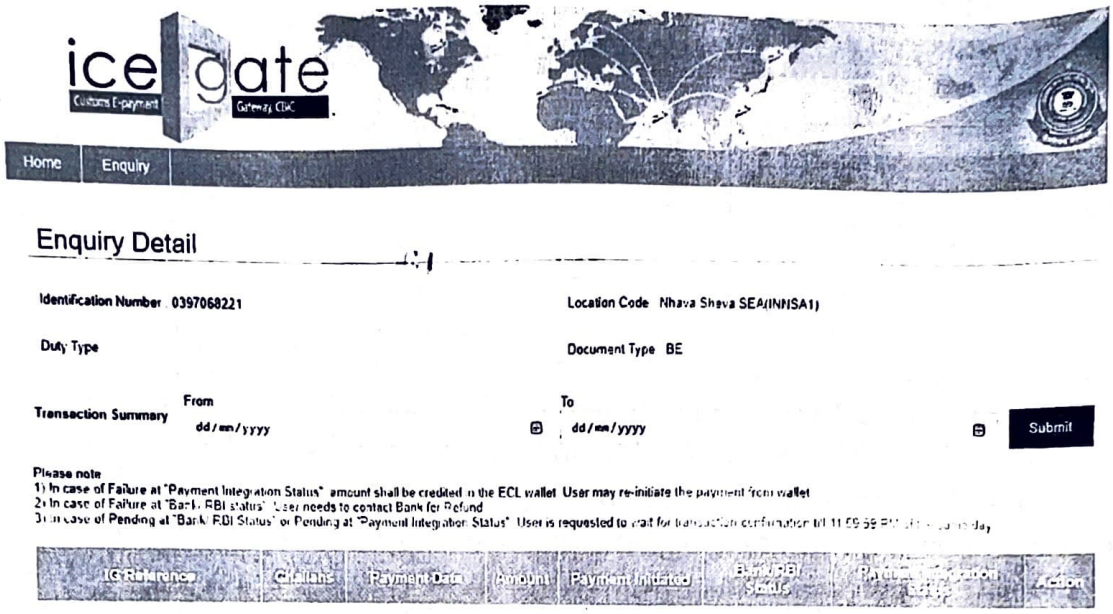
4. Before manual Out of Charge is granted, the Out of Charge granting officer should verify the e-payment status from the website https://cbicpay.icegate.gov.in/iceepay/enquiry. Navigations on the said website for verification is explained in flow charts detailed below:

O/C

APR 2

Air Cargo Complex, Sahar, Andheri (E) Mumbai-99. Deputy Commissioner Of Customs, EDI Section (Import)

Open "icegate.gov.in" > Click on "Services" > Click on "e-payment" > Click on "Customs duty payment" > a new window will open in which click on "enquiry" > fill up the details > following screenshot will appear:



5. In case where "Bank/RBI status" as shown in the above screenshot shows "success", manual Out of Charge shall be granted. However, in cases where, "Bank/RBI status" is shown as **"failed"/"pending", manual Out of Charge shall not be granted**. In such case, Importer is required to submit fresh Bank Certificate as per the Public Notice No. 01/2023 dated 06.04.2023 and the same shall again be verified as specified in para 3 above.

6. It can be understood better with different status appearing in the ICEGATE screen and proposed action as illustrated below:

1	2	3	4	5	6	7	8
IG Reference	**Challans**	**Payment Date**	**Amount**	**Payment Initiated**	**Bank/RBI Status**	**Payment integration Status**	**Action**
####abc###	View Challans	Apr 10,2023 hh:mm	2542927	Apr 5,2023 hh:mm:ss	SUCCESS	SUCCESS	Manual OOC to be granted

####abc###	View Challans	Apr 10,2023 hh:mm	5263171	Apr 5,2023 hh:mm:ss	SUCCESS	PENDING	Manual OOC to be granted
####abc###	View Challans	Apr 10,2023 hh:mm	7437403	Apr 5,2023 hh:mm:ss	SUCCESS	FAILED	Manual OOC to be granted
####abc###	View Challans	NA hh:mm	14208112	Apr 5,2023 hh:mm:ss	FAILED	NA	**Manual OOC not to be granted**
####abc###	View Challans	NA	2547107	Apr 5,2023 hh:mm:ss	PENDING	NA	**Manual OOC not to be granted**

7. In other words, manual Out of Charge should be granted only in cases where "Bank/RBI status" is shown as "Success". Also, on case to case basis, where Bank / RBI status is showing as "pending" or failed", manual Out of Charge- may be granted with the approval of concerned Additional / Joint Commissioner in-charge of the Import Shed, on production of fresh bank certificate confirming that re-credit of the duty amount has not happened in the importer's account, along with copy of bank statement or ECL ledger entries as available and undertaking.

8. If an importer is not able to produce the aforesaid certificate from the bank due to the closure of the bank, then on case to case basis, on producing proof of payment of duty, the Additional / Joint Commissioner in-charge of the Shed as the case maybe, shall permit grant of Out of Charge for such consignments, subject to the undertaking of Importer that the said certificate would be submitted on next working day.

9. AC/DC Shed in charge of Shed Batch as the case maybe, are directed to maintain a register of each such clearance granted in the format enclosed with this Standing Order (Annexure – I). At the end of the day a report on all such clearances shall be forwarded to the team constituted as per SO No. 16/2023 dated 19.04.2023, along with the copies of the Certificates issued by the Banks.

10. Technical Cell also on the next day obtain the list of Bills of Entry in which manual Out of Charge has been granted from the custodian and re check the same with the details forwarded by the DC/AC shed to the Technical section. For example, the Bills of Entry on which manual Out of Charge is granted by department on 20th April shall be reconciled with report

obtained by the custodian which shall be obtained on 21st April. The custodians have been directed to submit list of all manual Out of Charged Bills of Entry to the Technical section by email at pro.acc-sahar@gov.in by 11am every day. Bills of Entry of SEZ for which delivery is given by custodian in manual gate passes are to be shown separately.

10. A daily report on the manual Out of Charge shall be put up to commissioner for information everyday by 11 am.

11. Further, process to be adopted for regularization of the Bills of Entry which have been manual Out of Charged shall be issued subsequently.

12. Difficulty, if any, faced in the implementation of this Standing Order may be brought to the notice of the Additional Commissioner of Customs, Technical Section through email at pro.acc-sahar@gov.in.

20/4/23

(G. SHIRIL SAROJ)
Commissioner

Copy To:

1. Chief Commissioner of Customs, Mumbai Customs Zone-III.
2. Commissioner of Customs(Import), ACC, Mumbai Zone-III.
3. All Addl/ Joint Commissioner of Customs, Import Commissionerate, ACC.
4. MIAL,
5. AI Airport Services.
6. Office copy.

प्राप्त/RECEIVED
21 APR 2023
AIRPORT SERVICES LIMITED
GHA ADMIN

Annexure-I

Sr. No.	B/E No.	B/E Date	Duty Amount	Account No.	Bank Name	Branch Name	Transaction ID	Transaction ID date	Manual OOC date	SSO ID & Name of OOC office